

Ms Karen Westwood
HR Director
Granthorne Logistics Ltd
Granthorne House, 200 Trafford Park Road
Trafford Park
Manchester
M17 1QY

Leah Miller
18 Ridgeway Crescent
Sale
Manchester
M33 6XJ
leah.miller@gmail.com
07921 408 117

09 March 2026

By hand and by email to k.westwood@granthorne.co.uk · Strictly Private & Confidential

Dear Karen,

NOTICE OF APPEAL AGAINST THE REDUNDANCY DECISION OF 04 MARCH 2026

I write to confirm that I wish to appeal, under Section 11 of the Employee Handbook and the ACAS Code of Practice on Disciplinary and Grievance Procedures, against the Company's decision communicated to me by your letter dated 04 March 2026 (Ref. GR-RED-2026-007) to terminate my employment by reason of redundancy with effect from 04 June 2026.

I submit my appeal within the seven (7) calendar day window permitted by paragraph 5 of that letter. I would like the appeal hearing to be chaired, as the Handbook provides, by a member of the Executive who has not been involved in the matter to date.

I rely on three grounds of appeal, set out in turn below, and raise two further procedural points (under the headings "Procedural irregularity in the grievance" and "Scale of Programme Compass") that the panel is asked to consider on the merits. I will, of course, be willing to expand on any of them at the appeal hearing and to provide such further documents as the panel may reasonably request.

1. The dismissal is not, in substance, a genuine redundancy

The letter of 04 March 2026 describes my dismissal as being "by reason of redundancy" as part of the "restructure of the Network Operations function". In my respectful submission the redundancy situation, as it applies to me, is not genuine for the following reasons.

(a) The Network Operations leadership cohort comprises four (4) post-holders. My role of Operations Manager (Network South) is the only role in that cohort being removed. The two adjacent regional roles (Network North, Operations Manager (currently Sam Heaney); Network Central, Operations Manager (currently Mike Kershaw)) and the Head of Strategic Operations role (currently Ross Hopkin) remain in place, with the same scope, headcount and reporting line. The work of Network South has not been removed, automated, off-shored, contracted out, or consolidated into a smaller team; it is, on the Company's announcement of 18 February 2026, being redistributed between Mr Heaney, Mr Kershaw and Mr Hopkin.

(b) The redistribution of my duties to those three colleagues means that, in substance, the work continues to be done by employees of the Company. That is the classic indicator that the test in section 139(1)(b) of the Employment Rights Act 1996 (diminution in the requirements of the business for employees to carry out work of a particular kind) is not, on the facts, met.

(c) Programme “Compass”, the wider restructure that the Company says supports the redundancy, was announced internally on 18 February 2026, exactly two weeks after my grievance against Mr Morley was concluded as “not upheld”. I do not believe that proximity is a coincidence and I deal with it more fully under ground 3 below.

2. The selection process and criteria have not been fairly applied

The letter of 04 March 2026 records that the selection criteria applied were “skills, experience, performance, and conduct”, applied across the four-person leadership cohort.

(a) **Pool of one in practice.** Although the letter speaks of a four-person cohort, no other member of that cohort was at any stage informed that they were at risk of redundancy. The pool was, in practice, a pool of one (me). The Court of Appeal in *Capita Hartshead Ltd v Byard* [2012] ICR 1256 and the EAT in *Mugford v Midland Bank plc* [1997] ICR 399 are clear that the selection pool is open to scrutiny and that a pool of one will, save in narrow circumstances, render a redundancy dismissal unfair.

(b) **No sight of the scoring matrix.** I have asked, on 25 February 2026 and again on 02 March 2026, for sight of the scoring matrix that was said to have been applied. I have been told that the matrix “forms part of the confidential HR file and is not released to candidates as a matter of policy.” That, in my respectful submission, is not consistent with the ACAS guidance on consultation in redundancy situations, which requires the affected employee to be given a meaningful opportunity to comment on their scores. I would ask the appeal panel to direct that the scoring matrix is released to me, in redacted form if necessary, before the appeal hearing.

(c) **Performance criterion plainly does not support selection.** On any view of my recorded performance against the criterion of “performance” in my FY24/25 and FY25/26 appraisals (rated “Exceeds” in FY24/25 and “Strong” in FY25/26 mid-year, with the South region SLA at 96.4% rolling-12 against a 92% target, and a 4% favourable variance on cost-to-serve in FY24/25), I would expect to score either equally with or above my comparators. If I have in fact been scored below them on that criterion, I would respectfully like to understand how.

(d) **Conduct criterion.** If “conduct” has been used to mark me down, I am concerned that this may relate to the fact that I raised a formal grievance against my line manager on 14 January 2026 (Ref. GR-GRV-2026-014). The raising of a grievance is, in substance, a protected act under section 27 of the Equality Act 2010 to the extent that the grievance alleged direct sex discrimination, and any detriment imposed in connection with that act would be victimisation.

3. The decision is, in substance, connected to my earlier grievance

I respectfully ask the appeal panel to consider the sequence and proximity of the following events:

- 14 January 2026: I raised a formal grievance against my line manager Mr Daniel Morley, alleging bullying and unequal treatment.
- 18 February 2026: HR communicated to me that my grievance was “not upheld” on both strands (Ref. GR-GRV-2026-014).
- 18 February 2026 (same day): Programme “Compass” was announced internally, with my role identified as the affected role.
- 02 March 2026: my final consultation meeting took place, at which it was confirmed I would be issued notice.

- 04 March 2026: notice of redundancy was issued (Ref. GR-RED-2026-007).

Timeline taken from the HR correspondence and my contemporaneous notebook entries.

(a) The decision to identify my role as the affected role was, on the Company's own account, taken in late January and early February 2026; that is, while the grievance investigation was live. Mr Morley, against whom I had brought the grievance, sat on the Operations Leadership group that received the indicative restructuring proposals on 04 February 2026 (as I understand from the team-meeting calendar entries I retain). He was not formally recused from those discussions.

(b) My grievance of 14 January 2026 expressly alleged direct sex discrimination in the two promotion competitions and is, on that basis, a “protected act” within the meaning of section 27(2)(d) of the Equality Act 2010. The lawful test under section 27 of the Equality Act 2010 is whether I have been subjected to a detriment because I did the protected act; on the authority of *Page v Lord Chancellor* [2021] ICR 912 and *Saad v Southampton University Hospitals NHS Trust* [2019] ICR 311, the protected act need only be a material (more than trivial) influence on the decision-maker's reasoning. On the timeline set out above, the panel cannot safely conclude that the protected act had no material influence on the decision to identify my role as the affected role. For completeness, I do not put this ground on a section 47B Employment Rights Act 1996 (whistleblowing) basis: the grievance was a complaint about treatment of me, not a qualifying disclosure of wrongdoing in the public interest within the meaning of section 43B ERA 1996.

(c) I am separately writing this evening to the Chief Executive (copied to you) to express my concerns more fully and ask for the opportunity to meet outside the formal HR process. I do not, by mentioning it here, prejudice this internal appeal.

Procedural irregularity in the grievance — ACAS Code uplift point

Separately, and so that the panel is on notice of the point, I record that the grievance procedure conducted under reference GR-GRV-2026-014 did not, in fact, include a separate grievance hearing. There was an investigatory interview with me on 22 January 2026, and an interview with Mr Morley on 28 January 2026, followed directly by the outcome letter of 18 February 2026. No grievance hearing was offered or convened. Paragraphs 33 to 46 of the ACAS Code of Practice on Disciplinary and Grievance Procedures expect the employer to hold a grievance hearing before reaching a decision, to allow the grievant a meaningful opportunity to respond to the investigation findings. In the event that this matter proceeds to the Employment Tribunal, that omission would, in my respectful view, engage the tribunal's discretion under section 207A of the Trade Union and Labour Relations (Consolidation) Act 1992 to uplift any compensatory award by up to twenty-five per cent (25%) for unreasonable failure to follow the ACAS Code. I flag the point now because the appeal panel is empowered, if it agrees, to remit the matter for a properly constituted grievance hearing, which would avoid that consequence.

Scale of Programme Compass — section 188 TULRCA 1992

Finally, I respectfully ask the Company to confirm whether Programme “Compass”, taken as a whole and across all three Network functions (North, South, Central), is reasonably expected to give rise to twenty (20) or more redundancies at one establishment in any rolling ninety (90) day period. If it is, then the collective consultation obligations under section 188 of the Trade Union and Labour Relations (Consolidation) Act 1992 are engaged, and the failure to date to recognise a representative body, hold the prescribed minimum 30-day consultation, or notify the Secretary of State on Form HR1

would itself be a separate ground of complaint (with the potential for a protective award of up to 90 days' pay per affected employee under section 189 TULRCA). The Company has not, to my knowledge, addressed this in its consultation correspondence with me. I would invite the appeal panel to obtain a definitive answer on the scale of Compass before reaching its decision, and to disclose that answer in its outcome letter.

4. Remedy sought

I respectfully ask the appeal panel to:

(a) overturn the decision communicated by the letter of 04 March 2026 and reinstate me to the role of Operations Manager (Network South) on my existing terms and conditions, with reporting line changed (for the avoidance of doubt) away from Mr Morley; or, in the alternative,

(b) order that the matter be reconsidered *de novo* by a properly constituted panel from outside the Network Operations function, with disclosure to me of the scoring matrix and the opportunity to make representations on it; or, in the further alternative,

(c) accept that the decision is unsafe and invite the Company to enter into without-prejudice discussions about an appropriate exit.

5. Practical points

(a) I am happy to be accompanied at the appeal hearing by a colleague or a trade union representative under section 10 of the Employment Relations Act 1999, and reserve the right to do so.

(b) I am available to attend the hearing at any time during the working week with reasonable notice. I would respectfully ask that the hearing is convened within fourteen (14) calendar days of the date of this letter.

(c) I am content for the hearing to be held in person at Granthorne House, or by Teams, as the panel prefers.

I appreciate this is a difficult letter to receive and that the Company will form its own view on the points I have raised. I have tried to put them as fairly and constructively as I can. I look forward to hearing from you.

Yours sincerely,

L Miller

Leah Miller

Operations Manager, Network South (under notice) · Employee No. GR-0431

cc: Ms Rebecca McEwan, Chief Operating Officer (for information, as expected appeal chair) · Personal file copy

Enc: none with this letter; supporting documents will be provided to the appeal panel on appointment, including (without limitation) the grievance file (Ref. GR-GRV-2026-014), my FY24/25 and FY25/26 appraisals, and the calendar entries referred to under ground 3.